

ALABAMA DEPARTMENT OF REVENUE
ADMINISTRATIVE CODE

CHAPTER 810-3-79
OVERPAYMENT OF TAX

810-3-79-.01 Overpayment Of Tax.

(1) (a) If the Income Tax Return of a taxpayer shows an overpayment of tax because of withholding from wages and/or payments of estimated tax, the overpayment will first be applied against any income tax liability of earlier years owed by the taxpayer. The balance, at the election of the taxpayer, will be refunded or credited as a payment of estimated tax for the following year.

(b) Refunds of less than one dollar are made only on written request of the taxpayer who has made the overpayment.

(2) Interest rates are equal to the rate set by the United States Secretary of the Treasury pursuant to Internal Revenue Code §6621.

(3) Interest on overpayments of tax shall not begin to accrue until 90 days after the due date for filing the return or the date the return is filed, whichever is later.

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Statutory Authority: Code of Ala. 1975, §40-18-79.

History: Adopted September 30, 1982. Amended February 8, 1989, filed March 20, 1989. **Amended:** Filed January 25, 2019; effective March 11, 2019.